

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

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United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Published Opinion

Filed June 30, 2026

Judge Reed delivered the opinion of the Court, in which Chief Judge Alder and Judge March joined. Officer Nolan Rusk appeals the denial of qualified immunity on Mara Ellison's Fourth Amendment excessive-force claim. The underlying welfare-check encounter culminated in one five-second drive-stun cycle and a forcible descent. Obstruction in both officers' recordings leaves disputed whether Ellison struck Rusk and reached toward his equipment or only pulled from a painful wrist hold.

We lack interlocutory jurisdiction over Rusk's invitation to accept his version of those hidden movements. We therefore dismiss the factual-sufficiency portion of the appeal. A distinct legal issue is properly before us: whether Rusk is entitled to immunity even when we take the facts as the district court viewed them for Ellison. On that assumed account, existing precedent as of February 3, 2025 did not place the unlawfulness of this particular, single close-contact application beyond debate.

We assume without deciding that the force was constitutionally excessive. We reverse the legal denial of qualified immunity and remand with instructions to enter summary judgment for Rusk on the remaining damages claim. The factual dispute remains real, but it cannot defeat immunity when the assumed conduct did not violate law that was sufficiently specific at the time.

I. The Protective Encounter

Iris Ellison called emergency communications at 19:42 on February 3, 2025 because her sister Mara had missed medication and appeared to be in crisis. Iris reported no weapon, assault, threat, or suspected crime. Dispatcher Lena Cho classified the event as a welfare check and sent Officers Rusk and Priya Vega. JA32–38. Rusk arrived at Larkspur Court Apartments shortly after 19:52 and found Ellison seated in an exterior breezeway with her hands initially visible.

The encounter's protective origin matters. A seizure intended to secure care presents a different governmental interest from arresting a violent suspect. Yet a welfare purpose does not require officers to leave a distressed person uncontrolled whenever she refuses directions or physically opposes restraint. Objective reasonableness turns on the circumstances at each stage rather than the dispatch label alone.

Rusk began wrist control at approximately 19:53:02. Ellison pulled or turned, the participants moved into close contact, and Rusk told her to stop pulling. She answered that he was hurting her. Around 19:53:16, Rusk pressed a conducted-energy device against her body in drive-stun mode for one cycle while bringing her toward the floor. The device stopped near 19:53:21; the camera view improved a second later; and Vega then assisted with hand control. Handcuffing ended around 19:53:37. JA69–101.

No second cycle, probe discharge, or post-restraint strike is alleged. Medical personnel documented a wrist abrasion, two superficial contact burns, and a shoulder strain without fracture. JA51–63.

II. The Disputed Seconds

Ellison testified that Rusk's grasp hurt, causing her to recoil and pull. She denied punching him, touching his duty belt, attempting escape, or threatening either officer. Her account describes noncompliance and bodily movement but no immediate safety danger. JA107–117. Rusk testified that Ellison twisted, struck his forearm, and moved a hand toward equipment, prompting him to interrupt that movement and obtain control. JA118–130.

Vega could see gross movement but not the hands continuously during the decisive interval. She did not observe a weapon or hear a verbal threat. Because bodies and the railing blocked her view, she could neither confirm nor exclude the alleged strike and reach. JA141–150. Reports, medical histories, and deposition testimony preserve the same conflict rather than resolving it.

Those differences are material under *Graham v. Connor*. A nonthreatening pull during a painful grip supports a much smaller force interest than an assault followed by movement toward police equipment. The district court properly recognized that a jury could credit either account. Its ruling did not declare Ellison's testimony true; it identified evidence from which a factfinder could adopt that testimony.

Rusk asks us to infer threat from his command, movement sounds, the narrow walkway, and the absence of a complete visual contradiction. That submission addresses what occurred and what inferences the proof supports. We cannot decide it in this collateral proceeding. Our legal analysis instead uses the expressly identified plaintiff-favorable assumptions.

III. What the Recordings Do Not Show

The parties stipulated to authenticity of the two body-camera exports while reserving interpretation. Rusk's chest camera is materially blocked from about 19:53:08 through 19:53:22 by clothing and bodies at close range. Vega's position supplies another angle, but the railing, Rusk's torso, and the participants' rotation obscure the relevant hands. JA77–106. The files contain no cut, insertion, or unexplained clock gap; their limitation is field of view, not integrity.

Audio captures Rusk saying “stop pulling,” Ellison saying “you're hurting me,” movement noise, and a cry associated with device activation. A spoken command is evidence that Rusk perceived pulling. It is not a picture of whether a forearm contact occurred or whether one hand approached a belt. Likewise, a pain complaint is consistent with Ellison's account but does not itself negate all resistance. The recordings leave those historical questions open.

This case therefore does not permit the exceptional approach associated with video that indisputably contradicts a litigant's account. Enhancing visible pixels cannot disclose objects hidden behind another object. The district court's refusal to treat obstruction as proof for the movant was sound.

Our dismissal of the factual appellate target follows from that limit. It should not be misunderstood as an affirmance of Ellison's narrative, an adverse credibility finding against Rusk, or a conclusion that cameras must record every fact before an officer may receive immunity. It means only that evidence sufficiency remains outside immediate review.

IV. Collateral-Order Jurisdiction

A denial of qualified immunity may qualify as an appealable collateral order to the extent it turns on law. *Mitchell v. Forsyth*, 472 U.S. 511, 530 (1985). The immunity protects eligible officials not merely from liability but from the burdens of suit, so an erroneous legal denial cannot always await final judgment. That rationale does not authorize an appellate trial of contested facts.

Johnson v. Jones, 515 U.S. 304, 313–20 (1995), excludes a summary-judgment determination that the evidence presents a genuine issue for trial. This Court applied the division most recently in *Barricks v. Wright*, No. 25-1250 (4th Cir. Mar. 3, 2026). We may not revisit whether a plaintiff supplied adequate proof of her story, but we may ask whether the official receives immunity when the supported facts are taken as the district court viewed them.

Rusk's opening presentation crosses that line in part. Arguments that the sound proves a strike, that Ellison's testimony lacks credibility, or that the camera should be read in his favor challenge evidentiary sufficiency. We dismiss those matters for want of jurisdiction. His alternative argument accepts the district court's assumptions and contends that no precedent clearly prohibited his conduct. That is a legal claim within our authority.

Separating the targets yields no inconsistency. A genuine historical dispute may survive in the district court while the legal assumption still produces immunity. The second inquiry is dispositive here, eliminating any need for a jury to settle the first.

V. Facts Assumed for the Legal Question

We take as given that Ellison was seated, unarmed, visibly distressed, and the subject of a noncriminal welfare check. Rusk knew dispatch had reported no weapon or violence. After he took her left wrist, Ellison recoiled and pulled because the grip caused pain. She did not strike either officer, grab anyone, attempt flight, threaten harm, reach for equipment, or create an immediate danger. Rusk had Vega nearby.

We further assume that Rusk told Ellison to stop pulling, heard her pain complaint, then used one five-second drive-stun cycle while forcing her down. He did not allow a meaningful interval for slower communication or Vega's assistance before activating the device. The cycle caused superficial burns, and the descent contributed to a shoulder strain. No additional electrical force followed once control was achieved.

These facts derive from the summary-judgment order and supported record viewed for the nonmovant. JA246–253. They differ sharply from Rusk's testimony about a strike and belt reach. We do not add his disputed danger account to make immunity easier, nor do we convert Ellison's account into an adjudicated event.

The precise assumption also prevents analysis at an unhelpful level of generality. The question is not whether officers may use force during welfare checks or whether electrical force is always forbidden against a person who pulls. It is whether, by the incident date, binding law gave every reasonable officer fair notice that this one close-contact cycle during an active wrist-control encounter violated the Fourth Amendment under the no-danger facts stated above.

VI. Qualified-Immunity Method

Qualified immunity shields an official unless the plaintiff shows both a constitutional violation and a right clearly established when the conduct occurred. Courts may address the prongs in either order. *Pearson v. Callahan*, 555 U.S. 223, 236 (2009). We use that discretion because the specificity of prior notice resolves this appeal.

A rule is clearly established when existing precedent places the constitutional question beyond debate for an officer confronting materially similar circumstances. The inquiry does not demand a case identical in every detail, and an obvious violation may sometimes require no factual twin. But general propositions—force must be reasonable, serious force should track threat, mental illness matters—ordinarily cannot alone remove immunity in a setting where degrees of resistance, warnings, device mode, duration, and timing affect the calculus.

The relevant body of notice stops on February 3, 2025. Later decisions may state the governing analytic method when a court rules, but they cannot retroactively tell Rusk what the law required on the encounter date. This temporal separation is particularly important here because *Barricks and Zorn v. Linton*, 607 U.S. 568 (2026), were decided after the episode.

Ellison relies chiefly on *Estate of Armstrong ex rel. Armstrong v. Village of Pinehurst*, 810 F.3d 892 (4th Cir. 2016), together with decisions involving tasers, takedowns, and gratuitous force. Those authorities offer substantial caution. The narrower question is whether their holdings clearly governed this combination of an actively pulling subject, one drive-stun cycle, an unfolding effort to establish control, and no force after restraint.

VII. The Constitutional Question Reserved

The assumed facts could support a conclusion that Rusk used disproportionate force. Under *Graham*, the absence of suspected crime, weapon, flight, and immediate danger weighs heavily for Ellison. A welfare seizure may reduce rather than enlarge the justification for pain likely to worsen distress. The presence of a second officer and the short interval between wrist control and escalation also bear on total reasonableness.

Other considerations point less uniformly. Ellison was not motionless or compliant; she pulled during a close physical effort to control her arm. Rusk gave a command directed to that movement. The device remained in contact mode for one cycle, rather than firing probes, and he stopped electrical force before handcuffing. Reasonableness does not require officers to select the least intrusive feasible technique, although practical alternatives illuminate proportionality.

We do not resolve how these considerations should be balanced at the first prong. Deciding a constitutional rule can guide future officers, but it may also produce an unnecessary holding on a record whose critical movement is disputed and whose assumed facts sit between existing examples. The clearly-established analysis independently requires judgment for Rusk.

Our reservation does not suggest that one cycle is harmless or categorically reasonable. Drive-stun use intentionally causes pain and produced documented injury here. Nor does it validate Rusk's asserted strike-and-reach narrative. We simply assume for this opinion that Ellison could prove a Fourth Amendment violation and ask whether that violation was clearly established with the required factual specificity.

VIII. Armstrong's Important but Bounded Notice

Armstrong involved officers executing an involuntary-commitment order against a mentally ill man who wrapped himself around a signpost. After a warning, an officer applied a taser in drive-stun mode five times over roughly two minutes while several people attempted to pull Armstrong free. The Court held that electrical force was excessive because stationary, nonviolent resistance created no immediate safety exigency likely to be cured by tasing. 810 F.3d at 899–906.

The officers nevertheless received immunity for their 2011 conduct. The published opinion then gave prospective notice that a taser may be deployed only when an immediate safety risk justifies it and the device is reasonably likely to address that risk. Its guidance carries special weight in later mental-health seizures, including this one. We reject any suggestion that *Armstrong* can be ignored merely because its own defendants prevailed.

The factual reach of that notice remains the difficulty. Armstrong was stationary, holding a fixed object, and endured five applications across an extended extraction. Ellison, by assumption, pulled her arm while Rusk was establishing control in a narrow space; Rusk used a single contact cycle during the movement and stopped before restraint was complete. Her resistance was nonthreatening, but it was kinetic and contemporaneous with the challenged force.

The broad statement that electrical force requires an immediate safety risk favors Ellison. Yet qualified immunity turns on what the decision held in its factual setting, not on extracting its most general language. We cannot say *Armstrong* alone made this materially reduced, single-cycle use beyond debate.

IX. Other Circuit Precedent Before the Incident

Ellison invokes *Yates v. Terry*, 817 F.3d 877 (4th Cir. 2016), where repeated taser deployments followed a minor traffic stop and occurred despite a nonviolent subject's compliance. The repeated electrical force, shifting circumstances, and lack of active resistance supplied notice against gratuitous continuation. This case assumes only one application while Rusk was responding to ongoing pulling and trying to complete control.

Meyers v. Baltimore County, 713 F.3d 723 (4th Cir. 2013), likewise distinguishes initial force used during an active confrontation from later shocks delivered after the person was disarmed, secured, and surrounded. Its clear prohibition concerns continued force after the safety justification dissipates. Rusk's cycle ended before Ellison was handcuffed and was not repeated after the scene stabilized.

In *Smith v. Ray*, 781 F.3d 95 (4th Cir. 2015), an officer threw a woman down and drove a knee into her after an interaction involving modest movement. That decision confirms that slight resistance cannot be exaggerated into danger. It did not address the calibrated question whether one contact-mode electrical cycle during active arm pulling was clearly forbidden.

Barricks, decided after this encounter, collects particularized examples involving surrendered, nonresisting, or passively resisting individuals subjected to repeated punches, violent throws, or comparable injurious force. It reinforces the jurisdictional method we apply. Its holding does not supply earlier notice, and its examples do not erase the distinctions concerning timing, singular duration, and force used before control was achieved.

X. Zorn Is Analytic, Not Temporal Notice

The Supreme Court decided *Zorn v. Linton* on March 23, 2026, more than thirteen months after Rusk's conduct. There, an officer used a rear wristlock and pressure to move a protester who remained seated, linked arms, refused to stand, and received warnings. The Court held that precedent describing gratuitous pain compliance at a general level did not clearly establish the unlawfulness of that particular, routine control technique.

Zorn cannot itself count among the cases a reasonable Alder Creek officer could have read before February 3, 2025. We do not treat an intervening decision as retroactive notice or suggest that its later date weakens the force of earlier binding circuit law. Its relevance is methodological: a court deciding immunity today must define the right with attention to the officer's specific action, the subject's conduct, warnings, and the stage of restraint.

Nor do we equate Rusk's electrical application with the wristlock in *Zorn*. A drive stun deliberately inflicts electrical pain and may carry different consequences. Ellison, unlike the protester, was not committing trespass after deliberate refusal to leave. Those distinctions may make a constitutional violation more likely. They do not answer whether pre-incident precedent clearly resolved one cycle during active pulling.

The district court relied on a relationship—painful force must correspond to actual danger—rather than a sufficiently close holding addressing this amount and timing of force. *Zorn* confirms why that relationship, though meaningful, is too general to defeat immunity without a prior case or obviousness showing that closes the factual gap.

XI. Application to the Assumed Facts

Every reasonable officer would have understood that a welfare-check subject's distress is not a crime, that mental illness is not a threat by itself, and that force cannot continue after control merely to punish noncompliance. The law also warned that repeated taser use against a stationary, nonviolent person is excessive. Those propositions constrain police judgment but do not resolve every lesser electrical use during physical resistance.

Here the assumed pull was nonthreatening, yet it occurred after wrist control began and continued while bodies were moving. Rusk's command to stop preceded the cycle. He employed contact mode once, stopped after five seconds, and used no electronic force once Ellison was down and Vega assisted. The record contains injury, but severity of effect does not transform an uncertain legal boundary into fair notice.

Neither a controlling precedent with materially similar facts nor a robust obviousness rationale establishes that this particular response was prohibited beyond debate. *Armstrong* involved five applications against stationary resistance; *Yates* and *Meyers* involved repeated or continued force in circumstances where resistance or danger had ended; *Smith* involved a different takedown sequence. General proportionality cannot bridge every difference.

We emphasize the narrowness of this counterfactual holding. It does not authorize electrical force whenever someone pulls away, classify Ellison as dangerous, or decide the constitutional prong. It holds that, even accepting no strike, no reach, no flight, and no immediate threat, the law available on the incident date lacked the factual specificity required to impose damages on Rusk.

XII. Disposition

The appeal is dismissed insofar as Officer Rusk asks this Court to overturn the district court's determination that genuine disputes exist about a forearm strike, movement toward the duty belt, and immediate threat. Those are historical and evidence-sufficiency matters beyond interlocutory collateral-order jurisdiction. Nothing in today's judgment resolves them in either party's favor.

We possess jurisdiction over Rusk's alternative legal argument on the plaintiff-favorable facts. Assuming Ellison was unarmed, pulled because the wrist grasp hurt, did not strike or reach, and posed no immediate danger, we assume without deciding that one drive-stun cycle and a forcible descent violated the Fourth Amendment. Precedent available on February 3, 2025 did not, however, clearly establish the unlawfulness of that specific conduct beyond debate.

The district court's January 9, 2026 order is reversed to the extent it denied qualified immunity as a matter of law. The case is remanded with instructions to enter summary judgment for Rusk on Ellison's remaining individual-capacity claim and to undertake any ministerial closure proceedings consistent with this opinion. The factual portion of the appeal is dismissed, and appellant shall recover allowable appellate costs.

Zorn supplies only an intervening specificity instruction; it was not law at the encounter and does not furnish notice retroactively. *Armstrong* remains binding and important, but its materially different force sequence did not clearly settle this single-cycle application during active arm pulling.

DISMISSED IN PART; REVERSED AND REMANDED WITH INSTRUCTIONS.